

Chapter 1.1

General provisions

1.1.0 Introductory note

It should be noted that other international and national modal regulations exist and that those regulations may recognize all or part of the provisions of this Code. In addition, port authorities and other bodies and organizations should recognize the Code and may use it as a basis for their storage and handling bye-laws within loading and discharge areas.

1.1.1 Application and implementation of the Code

1.1.1.1 The provisions contained in this Code are applicable to all ships to which the *International Convention for the Safety of Life at Sea, 1974* (SOLAS), as amended, applies and which are carrying dangerous goods as defined in regulation 1 of part A of chapter VII of that Convention.

1.1.1.2 The provisions of regulation II-2/19 of that Convention apply to passenger ships and to cargo ships constructed on or after 1 July 2002.

For:

- .1 a passenger ship constructed on or after 1 September 1984 but before 1 July 2002; or
- .2 a cargo ship of 500 gross tons or over constructed on or after 1 September 1984 but before 1 July 2002; or
- .3 a cargo ship of less than 500 gross tons constructed on or after 1 February 1992 but before 1 July 2002, the requirements of regulation II-2/54 of SOLAS, as amended by resolutions MSC.1(XLV), MSC.6(48), MSC.13(57), MSC.22(59), MSC.24(60), MSC.27(61), MSC.31(63) and MSC.57(67), apply (see II-2/1.2).

For cargo ships of less than 500 gross tons constructed on or after 1 September 1984 and before 1 February 1992, it is recommended that Contracting Governments extend such application to these cargo ships as far as possible.

1.1.1.3 All ships, irrespective of type and size, carrying substances, materials or articles identified in this Code as marine pollutants are subject to the provisions of this Code.

1.1.1.4 In certain parts of this Code, a particular action is prescribed, but the responsibility for carrying out the action is not specifically assigned to any particular person. Such responsibility may vary according to the laws and customs of different countries and the international conventions into which these countries have entered. For the purpose of this Code, it is not necessary to make this assignment, but only to identify the action itself. It remains the prerogative of each Government to assign this responsibility.

1.1.1.5 Although this Code is legally treated as a mandatory instrument under chapter VII of SOLAS, as amended, the following provisions of the Code remain recommendatory:

- .1 paragraph 1.1.1.8 (Notification of infringements);
- .2 paragraphs 1.3.1.4 to 1.3.1.7 (Training);
- .3 chapter 1.4 (Security provisions) except 1.4.1.1, which is mandatory;
- .4 section 2.1.0 of chapter 2.1 (Class 1 – Explosives, Introductory notes);
- .5 section 2.3.3 of chapter 2.3 (Determination of flashpoint);
- .6 columns 15 and 17 of the Dangerous Goods List in chapter 3.2;
- .7 the segregation flow chart and example in the annex to chapter 7.2;
- .8 section 5.4.5 of chapter 5.4 (Multimodal Dangerous Goods Form), insofar as the layout of the form is concerned;

- .9 chapter 7.8 (Special requirements in the event of an incident and fire precautions involving dangerous goods);
- .10 section 7.9.3 (Contact information for the main designated national competent authorities); and
- .11 appendix B.

1.1.1.6 Application of standards

Where the application of a standard is required and there is any conflict between the standard and the provisions of this Code, the provisions of this Code take precedence. The requirements of the standard that do not conflict with the provisions of this Code shall be applied as specified, including the requirements of any other standard, or part of a standard, referenced within that standard as normative.

Note: A standard provides details on how to meet the provisions of this Code and may include requirements in addition to those set out in this Code.

1.1.1.7 Transport of dangerous goods used as a coolant or conditioner

Dangerous goods, that are only asphyxiant (which dilute or replace the oxygen normally in the atmosphere), when used in cargo transport units for cooling or conditioning purposes are only subject to the provisions of section 5.5.3.

Note: When carried on board as ship's stores or equipment, these coolants and conditioners are not subject to the provisions of this Code.

1.1.1.8 Notification of infringements

When a competent authority has reasons to believe that the safety of the transport of dangerous goods is compromised as a result of serious or repeated infringements of this Code by an enterprise which has its headquarters on the territory of another competent authority, it should if necessary notify that competent authority of such infringements.

1.1.1.9 Lamps containing dangerous goods

The following lamps are not subject to this Code provided that they do not contain radioactive material and do not contain mercury in quantities above those specified in special provision 366 of chapter 3.3:

- .1 lamps that are collected directly from individuals and households when transported to a collection or recycling facility;
- .2 lamps each containing not more than 1 g of dangerous goods and packaged so that there is not more than 30 g of dangerous goods per package, provided that:
 - (i) the lamps are manufactured according to a certified quality management system;
Note: The application of ISO 9001:2008 may be considered acceptable for this purpose.
and
 - (ii) each lamp is either individually packed in inner packagings, separated by dividers, or surrounded with cushioning material to protect the lamps and packed into strong outer packagings meeting the general provisions of 4.1.1.1 and capable of passing a 1.2 m drop test.
- .3 used, damaged or defective lamps each containing not more than 1 g of dangerous goods with not more than 30 g of dangerous goods per package when transported from a collection or recycling facility. The lamps shall be packed in strong outer packagings sufficient for preventing release of the contents under normal conditions of transport meeting the general provisions of 4.1.1.1 and that are capable of passing a drop test of not less than 1.2 m.
Note: Lamps containing radioactive material are addressed in 2.7.2.2.2.2.
- .4 lamps containing only gases of class 2.2 (according to 2.2.2.2) provided they are packaged so that the projectile effects of any rupture of the bulb will be contained within the package.

1.1.1.10 Devices containing dangerous goods, which are in use or intended for use during transport

For devices containing dangerous goods, which are in use or intended for use during transport, see 5.5.4.

1.1.2 Conventions

1.1.2.1 International Convention for the Safety of Life at Sea, 1974

Part A of chapter VII of the International Convention for the Safety of Life at Sea, 1974 (SOLAS), as amended, deals with the carriage of dangerous goods in packaged form, and is reproduced in full: